

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED	

Solicitation/Contract Form Continuation

Instrument Name: Flagpole Installation Services and Materials (JIATFS-Key West)

Product Service Code : Y1PZ

Continuation of Supplies or Services and Prices/Costs**Additional Information/Notes**

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Commercial Grade Flagpoles (30-foot, aluminum, satin finish) Furnish and deliver two (2) new approximately 30-foot, commercial-grade, tapered aluminum flagpoles with satin finish, matching existing flagpoles in material, finish, and style. Includes all hardware and finishes as specified in Statement of work. Product Service Code: Y1PZ North American Industry Classification System (NAICS): 238990 Pricing Arrangement: Firm Fixed Price	2	Each		
0002	External Halyard System (per flagpole) Provide and install external halyard system on each flagpole, including revolving cast aluminum truck assembly, rope halyard, and cleat, matching existing systems as per Statement of Work (SOW) Product Service Code: Y1PZ North American Industry Classification System (NAICS): 238990 Pricing Arrangement: Firm Fixed Price	2	Each		
0003	Ground Penetrating Radar Rental Rental of ground penetrating radar equipment for utility locating and exploratory dig to verify construction methods around existing flagpoles prior to excavation as per SOW Product Service Code: Y1PZ North American Industry Classification System (NAICS): 238990 Pricing Arrangement: Firm Fixed Price	1	Days		

0004	Concrete, Sleeve, and Miscellaneous Materials Provide and install galvanized steel ground sleeves and pour 3000 PSI concrete foundations for each flagpole, including all necessary materials (concrete, sand, centering wedges, etc.) as specified in Statement of work. Product Service Code: Y1PZ North American Industry Classification System (NAICS): 238990 Pricing Arrangement: Firm Fixed Price	2	Each		
0005	Excavating Equipment Rental Rental of excavating equipment for site preparation, exploratory dig, and foundation excavation for flagpole installation as per Statement of Work (SOW) Product Service Code: Y1PZ North American Industry Classification System (NAICS): 238990 Pricing Arrangement: Firm Fixed Price	1	Days		
0006	Lift Equipment Rental Rental of lift equipment for safe assembly and erection of flagpoles, including installation of halyard systems and flagpole topping as per SOW Product Service Code: Y1PZ North American Industry Classification System (NAICS): 238990 Pricing Arrangement: Firm Fixed Price	2	Days		
0007	Labor All labor required for site preparation, installation, assembly, and finishing of flagpoles, including restoration of disturbed areas, debris removal, and operational testing. Labor to comply with OSHA and SOW safety requirements as specified in Statement of work.	1	Each		

	Product Service Code: Y1PZ North American Industry Classification System (NAICS): 238990 Pricing Arrangement: Firm Fixed Price				
0008	Miscellaneous Travel, Lodging, and Meals Travel, lodging, and meal expenses for contractor personnel performing work on site, in accordance with SOW requirements. as per Statement of Work (SOW) Product Service Code: Y1PZ North American Industry Classification System (NAICS): 238990 Pricing Arrangement: Firm Fixed Price	1	Each		

Continuation of Description

PAYMENT INSTRUCTIONS INSTRUCTIONS TO VENDOR

All payments under this contract will be accomplished by the MASTERCARD Government Purchase Card.

Payment will be made only after a complete invoice of all costs associated with this contract has been submitted to the paying official. Minimum invoice requirements are listed below

POINT OF CONTACT:

Government POC: TBD

Contracting POC: TBD

Vendor: TBD

METHOD OF PAYMENT:

GOVERNMENT PAYMENT CARD - MASTERCARD INFORMATION FOR THE VENDOR:

Please submit the original invoice to: 410th CSB - RCO Miami Attn: TBD

Vendor shall Include the following items on the invoice:

Name and address of contractor Invoice date and invoice number

Contract Number - include purchase order and contract line item number(s)

Date of Purchase

Itemized list of supplies or services furnished and must correspond to each contract line item number (CLIN)

Quantity, Unit Price, and Extension of Each Item (unit prices and extensions need not be shown when incompatible with the use of automated systems; provided, that the invoice is itemized to show the information); and

Date of Delivery/ Shipment/ Performance

Name and address of official to whom payment is to be rendered in US Dollars (US\$).

STATEMENT OF WORK (SOW)
FOR
Flagpole Installation at JIATFS

1. **SCOPE.** This project includes the furnishing of all labor, materials, tools, and equipment necessary for the installation of two (2) new approximately 30-foot flagpoles. The new flagpoles are to match the existing flagpoles in material, finish, and style. All work must adhere to the standards outlined in the Unified Facilities Criteria (UFC) and all relevant local, state, and federal codes.

2. **SPECIFICATIONS.** The contractor shall furnish all management, supervision, personnel, delivery, equipment, material, transportation, supplies, and security required to perform this service in support of

HQ SOUTHCOM and JIATFS. The contractor is required to ensure the new approximately 30-foot flagpoles, including their foundations, hardware, and finishes, are identical to the existing flagpoles on the premises. All work shall be performed in strict accordance with the most current versions of the Unified Facilities Criteria (UFC), Occupational Safety and Health Act (OSHA), and all applicable state and local building codes. Where there is a conflict between codes, the most stringent shall apply. The Contractor shall perform all work listed below:

Scope of Work Details

1. The contractor shall verify the proposed installation locations on site.
2. A "Dig Safe" or similar utility locating service shall mark all underground utilities before any excavation begins.
3. Conduct an exploratory dig around existing flagpoles to verify construction methods and processes to match existing. Exploratory dig shall not exceed 12" around existing pole. Any fill removed shall be immediately replaced and compacted.
4. The installation area shall be cleared of any obstructions.
5. **Foundation:** Excavate two holes for the flagpole foundations. For approximately 30-foot flagpoles, a standard foundation hole is approximately 36 inches deep and 24 inches in diameter.
6. Install a galvanized steel ground sleeve in each excavation, ensuring it is level.

7. Pour a 3000 PSI concrete foundation around the ground sleeve.
 8. The concrete must be allowed to cure for at least 24 hours before flagpole installation.
 9. Use dry-tamped sand to ensure proper drainage and stability.
 10. Flagpole Installation: Assemble two new approximately 30-foot, commercial-grade, tapered aluminum flagpoles in accordance with manufacturer's instructions.
 11. The flagpoles should have a satin finish to match the existing poles.
 12. Erect the flagpoles into the cured concrete foundations, ensuring they are plumb and level.
 13. Secure the flagpoles within the ground sleeves using centering wedges.
 14. Install an external halyard system on each pole, including a revolving cast aluminum truck assembly, rope halyard, and cleat to match existing.
 15. Install flagpole topping to match existing.
 16. Upon completion of the installation, the contractor shall remove all debris, tools, and materials from the site.
 17. Any areas disturbed during construction should be restored to their original condition. This includes seeding and haying any damaged lawn areas.
 18. Conduct an operational test of the new flagpoles by raising and lowering a flag to ensure the halyard systems function correctly.
3. PERMITS: The contractor is responsible for obtaining all necessary permits prior to the commencement of work.
 4. SUBMITTALS: The contractor shall provide the following for approval prior to the start of work: Manufacturer's specifications for the flagpoles and all components. Shop drawings detailing the foundation and installation methods.
 5. PERIOD OF PERFORMANCE. The contractor shall start this requirement no later than five business days after contract award. The contractor shall not exceed 180 days.
 6. DELIVERABLES. The valves shall install two (2) approximately 30' flagpoles to match existing.
 7. INSPECTIONS AND ACCEPTANCE. A Government Representative will be designated to inspect and accept all work upon completion of each service.

Note: THE CONTRACTOR'S EMPLOYEES SHALL DECLINE DIRECTION BY ANY PERSON OTHER THAN THE CONTRACTING OFFICER OR CONTRACTING OFFICER REPRESENTATIVE.

8. SECURITY CLEARANCE. No security clearance is required for this work.

9. CLEARANCE FOR ADMISSION TO WORK SITE: All contractor personnel engaged in performance of work under this contract shall require a local background clearance by Joint Interagency Task Force South.

10. LITTER/TRASH AND DISPOSAL: All debris is to be hauled outside the property area immediately upon collection and disposed of at contractor's expense. Under no circumstance shall the contractor utilize Government refuse receptacles. The contractor shall ensure a dust barrier is erected around the entire jobsite and make sure all the necessary measures are taken to ensure a dust and pollutant free environment.

11. DAMAGES: The contractor shall be responsible for the safe, careful, and efficient operation of his equipment. The contractor shall assume full responsibility and liability for loss or damage to Government property caused by his operations for damage or claims for damage or injury to persons, property or equipment which might result from any services performed under this contract.

12. SAFETY: All power operating equipment and all hand or vehicular tools shall be operated within the safety parameters as defined by OSHA. Contractor personnel performing under this contract shall wear proper attire. Proper attire will consist of shirt, pants, safety shoes, hearing protection and safety glasses.

13. HOURS OF WORK: Work shall be performed Monday through Friday, between the hours of 0600 through 1700 PM unless otherwise negotiated. Saturdays and Sundays with prior permission and a valid scheduling reason i.e. (weather, DV visit, other).

14. FINAL ACCEPTANCE: Final work shall be accepted by the Government Representative.

15. WARRANTY: The contractor guarantees the material and workmanship unconditionally for a period of one year from final acceptance of work

16. SITE VISIT INFORMATION:

The Government will hold a site visit at the Joint Interagency Task Force South (JIATFS) on Tuesday, May 19, 2026, beginning at 09:30 hours (EST). All interested firms may attend, with a limit of two (2) attendees per firm.

Requirements for Access:

To participate in the site visit, vendors must submit the following information for all personnel attending:

- Company name
- Full names of all individuals attending

This information must be emailed to lian.pinzon.civ@mail.mil and sonia.m.boppell.civ@mail.mil no later than Monday, May 11, 2026, at 08:00 Hours (EST). Failure to submit attendee information by the deadline will result in denial of access to the site visit.

Technical questions will be addressed at the conclusion of the site visit. If Government responses to technical questions affect the Performance Work Statement requirements or any other portion of the solicitation, an Amendment of Solicitation will be issued.

Questions:

The cut-off date and time for submitting questions is 20 May 2026 at 14:00 Hours (EST). *Please limit your submission to a maximum of ten questions.* Responses to all questions received will be posted to the System For Award Management (SAM) as an amendment to the solicitation.

Please note that any oral or written remarks, explanations, or answers provided by Government representatives before, during, or after the site visit shall not change or qualify for any terms or conditions of the solicitation. Only formal amendments to the solicitation will constitute official changes.

Site visit location:

JIATFS Truman Annex, Key West, FL 33040

Additional Information:

Photos of the existing flagpoles and the proposed locations for the new flagpoles are attached to this Statement of work for reference.

INSTRUCTIONS TO VENDOR

BASIS OF AWARD. Award will be made to the quoter who proposes the *lowest price technically acceptable (LPTA)* quote. In order for quoters to be found technically acceptable, contractors must comply with the terms and conditions of all sections of the RFQ and offer items meeting all specifications outlined in the PWS. Quoters must address each specification and each deliverable. Any quoter determined to be technically unacceptable will be ineligible for contract award. Quotes shall be ranked in order of lowest price to highest price. The lowest priced quote shall be evaluated first. If the lowest-priced quote is technically acceptable, no other quotes will be evaluated.

NOTE: QUOTES (PROPOSALS) WILL NOT BE ACCEPTED FROM THIRD PARTY AGENCIES OR BROKERS. PROPOSALS FROM THIRD PARTIES WILL BE CONSIDERED NON-RESPONSIVE AND WILL BE EXCLUDED FROM CONSIDERATION FOR AWARD.

CLARIFICATIONS:

1. In accordance with the PWS requirements, the successful quoter shall provide a point of contact of sufficient authority to authorize changes. In order for this and other PWS requirements to be met, the Government must maintain privity of contract directly with providers. Quotes from third parties shall be considered non-responsive and will be excluded from consideration for award.
2. The Government will only pay for goods and services at the prices quoted in your proposal. Any additional fees--including, but not limited to, credit card transaction fees--that were not previously discussed or included in the quoted price will not be reimbursed. Vendors are responsible for ensuring that all applicable fees are incorporated into their quoted prices. Failure to do so may result in non-payment of such fees.
3. The preferred payment method is Wide Area Workflow (WAWF). If you are unable to submit invoices via WAWF, payment by credit card may be authorized; however, payment will be limited to the quoted amount, and no additional fees will be paid.

CONTRACT ADMINISTRATION

Information and questions pertaining to this requirement shall be addressed to the following points of contact (POCs):

Primary

- Sonia Boppell
- Contract Specialist
- Phone: (305) 437-2098
- Email: sonia.m.boppell.civ@mail.mil

Alternate

- Lian Pino
- Contracting Officer
- Phone: (305) 437-2662
- Email: lian.pino.civ@mail.mil

COMPLAINTS

If you have complaints about this procurement, it is preferable that you first attempt to resolve those concerns with the responsible contracting officer. However, you can also protest to Headquarters, AMC. The HQ, AMC-Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with the General Accounting Office or other external forum.

Contract award or performance is suspended during the protest to the same extent, and within the same time periods, as if filed at the GAO. The AMC protest decision goal is to resolve protests within 20 working days from filing. To be timely, protests must be filed within the periods specified in FAR 33.103. Send protests (other than protests to the contracting officer) to:

Headquarters U.S. Army Materiel Command

Office of Command Counsel

4400 Martin Road

Rm: A6SE040.001

Redstone Arsenal, AL 35898-5000

Fax: (256)450-8840

*** END OF NARRATIVE ***

Requirements

Flagpole Installation Services and Materials - JIATFS

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Mobile: (305) 780-3926 // Office: (305) 293-5666 DoDAAC: W912PX CountryCode: USA 0410 AQ HQ CONTRACT AUG 410TH CONTRACTING BDE, PO BOX 9051 NAS KEY WEST KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran
0002	Inspection and Acceptance Location Both Destination Instructions: Mobile: (305) 780-3926 // Office: (305) 293-5666 DoDAAC: W912PX CountryCode: USA 0410 AQ HQ CONTRACT AUG 410TH CONTRACTING BDE, PO BOX 9051 NAS KEY WEST KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran
0003	Inspection and Acceptance Location Both Destination Instructions: Mobile: (305) 780-3926 // Office: (305) 293-5666

	DoDAAC: W912PX CountryCode: USA 0410 AQ HQ CONTRACT AUG 410TH CONTRACTING BDE, PO BOX 9051 NAS KEY WEST KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran
0004	Inspection and Acceptance Location Both Destination Instructions: Mobile: (305) 780-3926 // Office: (305) 293-5666 DoDAAC: W912PX CountryCode: USA 0410 AQ HQ CONTRACT AUG 410TH CONTRACTING BDE, PO BOX 9051 NAS KEY WEST KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran
0005	Inspection and Acceptance Location Both Destination Instructions: Mobile: (305) 780-3926 // Office: (305) 293-5666 DoDAAC: W912PX CountryCode: USA 0410 AQ HQ CONTRACT AUG 410TH CONTRACTING BDE, PO BOX 9051 NAS KEY WEST KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran

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0008	Inspection and Acceptance Location Both Destination Instructions: Mobile: (305) 780-3926 // Office: (305) 293-5666 DoDAAC: W912PX CountryCode: USA

0410 AQ HQ CONTRACT AUG
410TH CONTRACTING BDE, PO BOX 9051 NAS KEY WEST
KEY WEST, FL 33040-9051
UNITED STATES

Mica Cochran

Continuation of Deliveries or Performance

0001	Quantity 2 Each Address and POC Place of Performance DoDAAC: W589TP CountryCode: USA W453 JIATFS PO BOX 9051, NAS J4 WAREHOUSE KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran Period of Performance From 10 Jun 2026 To 09 Dec 2026
0002	Quantity 2 Each Address and POC Place of Performance DoDAAC: W589TP CountryCode: USA W453 JIATFS BLDG 4180 J4 WAREHOUSE, TRUMAN ANNEX KEY WEST, FL 33040-5000 UNITED STATES Mica Cochran Period of Performance

	From 10 Jun 2026 To 09 Dec 2026
0003	Quantity 1 Days Address and POC Place of Performance DoDAAC: W589TP CountryCode: USA W453 JIATFS PO BOX 9051, NAS J4 WAREHOUSE KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran Period of Performance From 10 Jun 2026 To 09 Dec 2026
0004	Quantity 2 Each Address and POC Place of Performance DoDAAC: W589TP CountryCode: USA W453 JIATFS PO BOX 9051, NAS J4 WAREHOUSE KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran Period of Performance

	From 10 Jun 2026 To 09 Dec 2026
0005	Quantity 1 Days Address and POC Place of Performance DoDAAC: W589TP CountryCode: USA W453 JIATFS PO BOX 9051, NAS J4 WAREHOUSE KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran Period of Performance From 10 Jun 2026 To 09 Dec 2026
0006	Quantity 2 Days Address and POC Place of Performance DoDAAC: W589TP CountryCode: USA W453 JIATFS PO BOX 9051, NAS J4 WAREHOUSE KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran Period of Performance

	From 10 Jun 2026 To 09 Dec 2026
0007	Quantity 1 Each Address and POC Place of Performance DoDAAC: W589TP CountryCode: USA W453 JIATFS PO BOX 9051, NAS J4 WAREHOUSE KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran Period of Performance From 10 Jun 2026 To 09 Dec 2026
0008	Quantity 1 Each Address and POC Place of Performance DoDAAC: W589TP CountryCode: USA W453 JIATFS PO BOX 9051, NAS J4 WAREHOUSE KEY WEST, FL 33040-9051 UNITED STATES Mica Cochran Period of Performance

From 10 Jun 2026 To 09 Dec 2026
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Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10		
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02		
52.233-4	Applicable Law for Breach of	2026-02		

Contract Claim. (Deviation 2026-00038)

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12		
252.232-7009	Mandatory Payment by Governmentwide Commercial Purchase Card.	2018-05		
252.232-7010	Levies on Contract Payments.	2006-12		

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
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252.232-7006 Wide Area WorkFlow Payment 2023-01
Instructions. (Tailored)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

DOES NOT APPLY TO THIS ACQUISTION.

(End of clause)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-5	Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)	2025-03	Deviation 2025-O0004	2025-03
'RESERVED'				

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.202-1	Definitions.	2020-06		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7008	Assignment of Claims (Overseas).	1997-06		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.252-6	Authorized Deviations in Clauses.	2020-11		

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of Defense FAR Supplement [insert regulation name] (48 CFR CHAPTER 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachment: Photos of the existing flagpoles and the proposed locations for the new flagpoles are provided as part of the Statement of Work for your reference.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Flagpole i nstallatio n location	Flagpole in the Circle	Flagpole in the Circle	28 Apr 2026		1	Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

ADDENDUM TO FAR 52.212-1

ADDITIONAL INSTRUCTIONS AND INFORMATION:

A. Technical Acceptability is defined as meeting all specifications in the Performance Work Statement. You must address each specification and each deliverable. Quoters shall be ranked in order of lowest price to highest price.

The lowest-priced quote shall be evaluated first. If the lowest-priced quote is technically acceptable, no other quotes will be evaluated.

NOTE: This RFQ is in accordance with FAR Part 12 and 13

B. Quoters are required to submit a complete quote package in accordance with the instructions below. Only electronic offers will be received via email. The quoter shall submit electronic copies of their quote to the Contract Specialist, Sonia Boppell, Sonia.m.boppell.civ@mail.mil. Submissions must be received on or before the solicitation closing date as stated in Part 8 of the STANDARD FORM 1449.

C. Period for acceptance of quotes. The quoters agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of quotes, unless another time period is specified in an addendum to the solicitation.

D. By submitting a quote for this solicitation, Offerors are certifying that their products and/or services meet/exceed the minimum requirements of the Performance Work Statement and are able to meet the delivery schedule listed in the solicitation.

E. Technical Acceptability: The Government requires the Offeror to submit a written Technical Proposal. The proposal must be specific, detailed, and completely demonstrate that the Offeror has a thorough understanding of the requirements. General statements such as "the Offeror understands and can comply with the requirements" will be considered inadequate.

1. Quoters are cautioned to comply with all instructions within this solicitation to ensure submission of a complete proposal in accordance with FAR 52.212-1, Instructions to Offerors. Failure to furnish a complete proposal may result in the proposal being unacceptable to the Government and elimination from consideration for award (See FAR 15.208 for further information regarding late proposals).

2. The quoter shall provide manufacturer specifications as following:

- KEY POINT #1. The quoter shall provide manufacturer specifications.

The quoter shall submit product data sheets and manufacturer specifications for the proposed approximately 30-foot, commercial-grade, tapered aluminum flagpoles. These documents must explicitly demonstrate that the flagpoles feature a satin finish, external halyard system, revolving cast aluminum truck assembly, rope halyard, cleat, and appropriate topping, ensuring they will match the existing flagpoles in material, finish, and style. This submittal is required in accordance with the Statement of Work, Paragraph 4.

- KEY POINT #2: The quoter shall provide shop drawings.

The quoter shall submit detailed shop drawings that clearly illustrate the foundation and installation methods for the flagpoles. The drawings must explicitly detail the 36-inch deep by 24-inch diameter excavation, the installation of a galvanized steel ground sleeve, use of centering wedges, dry-tamped sand for drainage and stability, and the 3000 PSI concrete foundation. These requirements are outlined in Paragraph 2 (Items 5, 6, 7, 9, 13) and Paragraph 4 of the Statement of Work.

- KEY POINT #3: The quoter shall provide a project execution plan.

The quoter shall submit a brief narrative describing the methodology for executing the work. This plan must include the process for utility locating using a "Dig Safe" or similar service, conducting the 12-inch exploratory dig around existing flagpoles, erecting a dust barrier around the jobsite, restoring any disturbed areas (including seeding and haying), and hauling and disposing of all debris off-site at the contractor's expense. This deliverable is required as referenced in Paragraph 2 of the Statement of Work.

- KEY POINT #4. The quoter shall provide a schedule and milestone plan.

The quoter shall submit a schedule that demonstrates the ability to commence work no later than five (5) business days after contract award and achieve final completion within the 180-day period of performance. The schedule must acknowledge the required working hours of Monday through Friday, 0600 to 1700, as specified in Paragraphs 5 and 13 of the Statement of Work.

- KEY POINT #5. The quoter shall provide a compliance and warranty statement.

The quoter shall submit a signed statement acknowledging adherence to all applicable Unified Facilities Criteria (UFC), Occupational Safety and Health Act (OSHA) standards, and local and state building codes. The statement must also confirm compliance with JIATFS local background clearance requirements and provide an unconditional one-year warranty on all materials and workmanship. This requirement is referenced in Paragraphs 1, 2, 9, and 15 of the Statement of Work.

3. Past Performance. The contractor shall provide past performance information regarding similar contracts. The apparent successful quoter shall have satisfactory past performance. All quotes shall provide three (3) current and relevant references. A current reference is an order within the last 36 months. A relevant reference is an order of approximately the same size and complexity. If an offeror does not submit any or less than (3) references, the offeror shall affirmatively state it

only has a certain number of references or state it has none at all. Such quoters shall be assigned a past performance rating of "Acceptable" if the quoter affirmatively states it has no references.

Quoters who fail to provide (3) references or affirmatively address a lack of references shall be considered technically unacceptable as regarding past performance and will not receive a "Acceptable" rating.

4. The place of performance for this requirement is JIATFS Truman Annex, Key West, FL 33040.

5. System for Award Management. Unless exempted by an addendum to this solicitation, by submission of an offer, the offeror acknowledges the requirement that a prospective awardee shall be registered in the SAM database prior to award, during performance and through final payment of any contract resulting from this solicitation.

If the Offeror does not become registered in the SAM database in the time prescribed by the Contracting Officer, the Contracting Officer will proceed to award to the next otherwise successful registered Offeror. Offerors may obtain information on registration and annual confirmation requirements via the SAM database accessed through <https://www.beta-sam.gov>.

6. Standard Form (SF) 1449's block 17(a) must include the following information: Company Name, Address, Telephone Number, Email Address, Fax Number, Contractor DUNS Number and Commercial and Government Entity (CAGE) Code or NATO Cage Code (NCAGE). In addition, blocks 30(a) - 30(c) must be completed, and signed acknowledgement of any and all amendments (if applicable).

7. Offerors shall submit quotes in English. Prices furnished shall be all inclusive and in U.S. Dollars.

When preparing the quotations, offerors will include the price per unit (Unit Price) for each of the Contract Line Item Numbers (CLINs) or SubCLINs, and then provide the total price (Amount) for the CLIN or SubCLIN by multiplying the quantity required by the price per unit. The offeror shall then total all priced CLINs and SubCLINs and enter the total in Block 26 (Total Award Amount).

8. The quoters shall also submit cancellation guidelines.

9. Quoters are advised that payments against the contract resulting from this solicitation will be made through credit card.

*****Notice to Quoter(s)/Supplier(s): The Government reserves the right to cancel this solicitation, either before or after the closing date for receipt of proposals. In the event the Government cancels this solicitation, the Government has no obligation to reimburse an offeror for any costs.*****

QUOTES WILL NOT BE ACCEPTED FROM THIRD PARTY AGENCIES OR BROKERS.

QUOTES WILL BE ACCEPTED DIRECTLY FROM GENERAL CONTRACTORS CAPABLE OF PROVIDING THE MATERIALS, EQUIPMENT, AND SERVICES REQUIRED TO COMPLETE THE INSTALLATION OF THE FLAGPOLES IN ACCORDANCE WITH THE STATEMENT OF WORK (SOW).

QUOTES FROM THIRD PARTIES OR BROKERS WILL BE CONSIDERED NONRESPONSIVE AND WILL BE EXCLUDED FROM CONSIDERATION FOR AWARD.

*** END OF NARRATIVE ***

0001

Point of Contact: MELISSA PATTERSON 305-293-5324

0002

Point of Contact: MELISSA PATTERSON 305-293-5324

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Point of Contact: MELISSA PATTERSON 305-293-5324

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Point of Contact: MELISSA PATTERSON 305-293-5324

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Point of Contact: MELISSA PATTERSON 305-293-5324

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Point of Contact: MELISSA PATTERSON 305-293-5324

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Point of Contact: MELISSA PATTERSON 305-293-5324

0008

Point of Contact: MELISSA PATTERSON 305-293-5324

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Lowest Price Technically Acceptable- Award will be made on the basis of the lowest evaluated price of proposals meeting or exceeding the acceptability standards for non-cost factors. The Government will evaluate the Technical Proposal on a Acceptable/Unacceptable basis. Technical Acceptability is defined as meeting all specifications in the solicitation. You must address each specification and each deliverable. Offers shall be ranked in order of lowest price to highest price. The lowest-priced offer shall be evaluated first. If the lowest-priced offer is technically acceptable, no other offers will be evaluated.

(b) *Options (if applicable)*. N/A

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Addendum to FAR 52.212-2

Evaluation Factors for Award (Technical Acceptability)

Award will be made on the basis of the lowest evaluated price of proposals meeting or exceeding the acceptability standards for non-cost factors. The Government will evaluate the Technical Proposal on a Pass/Fail (Acceptable/Unacceptable)basis. Technical Acceptability is defined as meeting all specifications in the solicitation. You must address each specification and each deliverable. Offers shall be ranked in order of lowest price to highest price. The lowest-priced offer shall be evaluated first. If the lowest-priced offer is technically acceptable, no other offers will be evaluated.

Award will be made on the basis of the lowest evaluated price of proposals meeting or exceeding the acceptability standards for non-cost factors. The Government will evaluate the Technical Proposal on aPass/Fail (Acceptable/Unacceptable)basis.

To be rated "Acceptable," the Offeror's technical proposal must meet the following criteria:

1. **Flagpole Specifications:** The Offeror must provide manufacturer data sheets and specifications that clearly demonstrate the proposed flagpoles are approximately 30-foot, commercial-grade, tapered aluminum with a satin finish. The submittal must confirm the inclusion of all required external hardware, including the external halyard system, revolving cast aluminum truck assembly, rope halyard, cleat, and appropriate topping, ensuring the new flagpoles will match the existing ones in material, finish, and style. Proposals that lack these specifications, are incomplete, or propose materials or finishes that do not match the existing setup will be rated Unacceptable.
2. **Foundation & Installation:** The Offeror must submit detailed shop drawings that accurately depict the required foundation and installation methods. The drawings must show a 36-inch deep by 24-inch diameter excavation, the installation of a galvanized steel ground sleeve, centering wedges, the use of dry-tamped sand for drainage and stability, and a 3000 PSI concrete foundation, as specified in the Statement of Work. Any proposal that does not meet these structural or dimensional requirements, or lacks sufficient detail to verify compliance, will be rated Unacceptable.
3. **Execution & Site Management:** The Offeror must provide a comprehensive Project Execution Plan that outlines a clear sequence of events for the work. This plan must include the process for utility locating using a "Dig Safe" or similar service, conducting a 12-inch exploratory dig around existing flagpoles, erecting a dust barrier around the jobsite, restoring any disturbed areas (including seeding and haying), and hauling and disposing of all debris off-site at the contractor's expense. Omission of any critical safety, digging, or site restoration requirements will result in an Unacceptable rating.

4. **Schedule & Compliance:** The Offeror must submit a schedule that demonstrates the ability to commence work no later than five (5) business days after contract award and achieve final completion within the 180-day period of performance. The schedule must acknowledge the required working hours of Monday through Friday, 0600 to 1700, as well as any necessary arrangements for weekend work if required. Additionally, the proposal must include a signed statement acknowledging compliance with all applicable Unified Facilities Criteria (UFC), Occupational Safety and Health Act (OSHA) standards, local and state building codes, JIATFS local background clearance requirements, and an unconditional one-year warranty on all materials and workmanship. Proposals that exceed the 180-day period, delay the start beyond five days, or fail to include the mandatory warranty and compliance agreements will be rated Unacceptable.
5. **Overall Technical Acceptability:** If an Offeror receives an "Unacceptable" rating in any single evaluation factor described above, the entire technical proposal will be deemed Unacceptable and will be ineligible for award. Only proposals rated Acceptable in all technical factors will be considered for award based on price.

Note to Contracting Officer: *If an Offeror receives an "Unacceptable" rating in any single evaluation factor above, their entire technical proposal will be deemed Unacceptable and will be ineligible for award.*

*** END OF NARRATIVE ***

Offeror Representations and Certifications - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-3	Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)	2025-03	Deviation 2025-O0004	2025-03

Offeror Representations and Certifications-Commercial Products and Commercial Services (MAR 2025) (DEVIATION 2025-O0003 and 2025-O0004)

(a) Definitions. As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "Sensitive technology"-

Sensitive technology-

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits

Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.
- (2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

- (1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one

or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror

has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that-

(i) It ☒ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) SDVOSB concern joint venture eligible under the SDVOSB Program. The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) Women-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) WOSB joint venture eligible under the WOSB Program. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) Women-owned business concern (other than small business concern). [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each

party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) Certification Regarding Payments to Influence Federal Transactions (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f) (3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No. (yes/no)	Country of Origin	Exceeds 55% domestic content
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,"

"commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
---------------	-------------------

_____	_____
_____	_____
_____	_____

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
---------------	-------------------

_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) [] Are, [] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax

Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

Listed End Product	Listed Countries of Origin
_____	_____
_____	_____

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) []

(ii) []

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

☐ TIN: ____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other ____.

(5) Common parent.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that-

(i) It [] is, [] is not an inverted domestic corporation; and

(ii) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further

Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____(or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services-Representation. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	2026-02		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.237-1	Site Visit.	1984-04		

Site Visit (Apr 1984)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

(End of provision)

